

03.05.2022

Fine for GDPR Violation

The National Supervisory Authority completed in March 2022 an investigation into the operator Megareduceri TV S.R.L., which was fined as a result of the fact that this operator did not provide the information requested by our institution, thus violating the provisions of Article 83 paragraph (5) letter e) correlated with the provisions of Article 58 paragraph (1) of the General Data Protection Regulation. As such, the operator Megareduceri TV S.R.L. was sanctioned with a fine amounting to 19,795.6 lei (equivalent to the sum of 4,000 EURO). The investigation was initiated following complaints from several petitioners who reported that they received commercial messages promoting the services on the website www.reducerazi.ro via SMS, without having expressed their consent to receive such messages on their personal phone numbers.

Since the operator did not respond to our institution's requests, although it confirmed receipt of them, it was sanctioned with a fine.

Additionally, the operator was also subjected to the following corrective measures:

- the corrective measure to ensure compliance of processing operations with the provisions of the GDPR, namely to avoid situations of processing personal data without the consent of the data subjects and without the existence of another situation in which consent is not required;
- the corrective measure consisting of taking necessary actions regarding the evaluation of processed personal data, so that data such as phone numbers are no longer processed for direct marketing purposes or for sending commercial communications through electronic communication services intended for the public without the prior express consent of the data subjects.

Legal and Communication Department
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